



JAMAICA CONSTABULARY FORCE
Personal Use of Social Media Policy and Guidelines

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1.0 INTRODUCTION

The growing popularity of the social media network throughout the world has not escaped the members of the Jamaican Constabulary Force (JCF), sworn and unsworn members alike. Whilst these media have helped in the maintenance and rekindling of personal and professional relationships and have widen the knowledge base of members, they have also allowed for the creation of new opportunities, challenges and risks to the members of the organization. While most members display professionalism in the use of these social media, there are others whose behaviour if left unchecked will bring the Force into disrepute and endanger themselves and their colleagues. Some of the blatant infractions committed by some members of the organization include; the open display of pictures with members handling weapons, open display of intimacy, expression of apathy towards administration, discussion of matters under investigation and other utterances that are liable.

Public relations are influenced by the attitude of the public towards the police and by the attitude of the police towards the public. The attitude of citizens is also influenced by other people and the media. It should be appreciated therefore that the attitude of the public is strongly influenced not only by their personal experience but also by their expectations and understanding of police policies. When adverse social commentaries and photographic displays are transmitted virally by members of the Force it impacts the image and relations with the public. The damage is never usually witnessed by the sender but the image and integrity of the organization comes up for scrutiny. Consequently the relations of the police with the public will be affected as the attitude of the average citizen is reflective of the attitudes of citizens at all levels of society.

The fact that members are scrutinized on, or off duty, makes it even more important for our behaviour and utterances to be in keeping with the code of conduct governing the organization. Social media when used appropriately can be a great tool to advance our personal profile, make friends and keep in touch with the wider global community

2.0 PURPOSE

The purpose of this document is to outline the JCF's policy on the personal use of social media by members and serves to inform, guide and educate members in the accepted standard of use of social media. This policy is not intended to dissuade members from using social media, but to set minimum standards in its usage based on the nature of policing.

3.0 SCOPE

This policy and guideline on the personal use of social media apply to all members of the Jamaica Constabulary Force and its auxiliary and includes members of the Rural Police Force, unsworn members (including contract and temporary), contractors, sub-contractors and consultants who are privy to information because of their unique position with the police force; and covers their personal use of social media sites.

4.0 DEFINITIONS

4.1 Official Use

Refers to the use of social media sites by the JCF's Corporate Communication specialist in, representing the communication strategies of the JCF and its auxiliaries on a particular event or activities for public information, as set out in the Corporate Social Media Policy

4.3 Personal Use

Refers to the personal use of social media by anyone in the scope of this policy whether at work or on his/her private time

4.4 Social Media

Refers to web-based technologies that enable the creation and exchange of user-generated content. Social media may also be defined as communication/publication platforms which are generated and sustained by interpersonal interaction via technologies. The use of social media occur in a variety of formats including chat rooms, weblogs, social blogs, wikis, micro-blogging, internet fora, podcast, pictures, video, and rating and social bookmarking. Examples of social media include, but are not limited to Facebook, LinkedIn, MySpace, YouTube, Flickr and Twitter

5.0 RESPONSIBILITIES:

5.1 The Director of Corporate Communication Network (CCN) shall designate a corporate spokesperson who shall:

5.1.1 be responsible for representing the JCF and its auxiliaries on social media on matters concerning corporate issues relating to particular communities, crimes or policing portfolios and activities.

5.1.2 ensure that the information posted to the public on key corporate issues are consistent, concise, accurate and clear.

5.2 **Members** shall be responsible to ensure that the posts they make on social media are in keeping with this policy and guidelines.

6.0 POLICY STATEMENTS

It is the policy of the JCF that:

- 6.1 Members shall not, in their capacity as employees, make any police comment in social media about any incident, organization's policy or procedure without prior authorization from the Commissioner of Police in accordance with the Media Policy and the Corporate Social Media Policy.
- 6.2 Members shall not, in their capacity or otherwise identifiable as a police officer, post offensive, racist or obscene material on social media sites whether on or off duty.

7.0 POLICY GUIDELINES

7.1 Personal Use and Police Employment

7.1.1 Public Comment and Police Employment

This policy sets standards that must be followed when members use social media in a private capacity, especially if they identify themselves as members either directly or as part of a user profile, or if they can be identified as working for the Force via the content of their postings.

These guidelines identify the key dangers involved in the personal use of social media by members, and provide recommendations to help members protect their privacy and career, as well as the safety of themselves, their family and colleagues.

7.1.2 Social Media is Public Comment

There is no such thing as a "private" social media site, regardless of the privacy settings. Posting information on-line is no different from publishing in a newspaper. If an member makes any comment about the JCF on a social media site they are making a public comment.

Members must not, in their capacity as employees, make any police comment in social media about any incident, organization's policy or procedure without prior authorization from the Commissioner of Police in accordance with the Media Policy and the Corporate Social Media Policy.

A corporate spokesperson is responsible for representing the JCF and its auxiliaries externally on matters concerning particular communities, crimes or policing portfolios and activities. The spokesperson ensures there are consistent, concise, accurate and clear information to the public on key corporate issues.

7.1.3 Public Comment as a Private Citizen

A person identifiable as a police officer who posts offensive, racist or obscene material while off duty on social media sites, could be in breach of the Jamaica Constabulary Force Ethics and Integrity Policy in the same way as if he/she shouted offensive, racist or obscene material in public whilst in uniform.

7.1.4 On-line Activity

The Jamaica Constabulary Force Ethics and Integrity Policy states that all members of the JCF and its auxiliaries must behave honestly and in a way that upholds the values and the good reputation of the organization whether on or off duty.

In posting to social media sites in a private capacity:

1. Links or references to documents on JCF website, intranet or social media sites are permitted;
 2. Give an opinion but be clear that it is a personal opinion; where personal views are expressed then it is encouraged that the pre-cursor **“In my Opinion”** be attached;
 3. Do not comment on, suggest or hint at matters that are, or are likely to be investigated. Such action may jeopardise the investigative and or judicial process;
 4. Do not post any material that may bring the JCF and its auxiliaries into disrepute;
 5. Do not comment on or post documents that are confidential and proprietary to administration;
 6. Under no circumstances should offensive comments be made about managers, peers or colleagues;
 7. Make sure on-line activities do not interfere with job performance. For example, public comment on a particular Police Force or Government policy or program is inappropriate if the employee is directly involved in advising on, directing the implementation of, or administering that policy program. The comment(s) could be seen as compromising the employee’s ability to do the job in an unbiased manner;
 8. Think of what you write in the same way as things you might say to a journalist, or conversations you might have with people you do not know. If you would not say it in those situations, do not say it online. Talking about some things could get you and the organization in legal trouble, even if it is just your own personal view;
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9. Whether on or off duty a police employees conduct will reflect on the organization. All employees must protect the reputation of the Police Service by behaving in a lawful and appropriate manner consistent with the Force's Ethics and Integrity Policy;
 10. Do not use police email addresses in personal social media sites;
 11. Do not imply endorsement of personal views, or authorisation to speak on behalf of the police force;
 12. Obey the law - do not post any material that is defamatory, libellous, discriminatory, harassing, obscene or threatening, discloses other persons' personal information or infringes intellectual property, copyright or a trademark;
 13. Do not use the name of the JCF to endorse products, causes or opinions;
 14. Do not post organization's insignias without official consent; and
 15. Your conduct should be appropriate at all times for your role. Your manager, reporters and peers may read what you write.

7.1.5 Confidential Information

The unauthorised disclosure of confidential information is a significant risk to the Force, and has serious ramifications for any members who commit such disclosure. For example, the disclosure of confidential police information by uploading operational material (crime scene photos, in-car video footage, CCTV footage or footage of police training exercises, accused whilst in police custody, etc) onto social media sites is a serious breach of legislation and policy and may lead to criminal charges being laid against offending employees.

The Jamaica Constabulary Force Ethics and Integrity Policy states that an employee must only access, use or disclose confidential information if required by their duties and allowed by JCF policy.

An officer is expected to treat all information which comes to their attention in an official capacity as strictly confidential, and on no account without proper authorization divulge it to anyone. This is a serious matter which may result in disciplinary action and could jeopardise employment with the JCF.

The unauthorised on-line publication of confidential information such as training videos discloses police methodology to the public. Members who provide police methodology to criminals and the media via this medium, directly compromise the safety of operational police officers.

Members who are uncertain whether or not material they have posted on a social media site is a breach of law or policy, are to remove the material

immediately and then seek advice from senior officer such as a duty officer or Commander.

7.2 Conflicts of Interest

7.2.1 Conflict of Interest Policy

The Conflicts of Interest Policy and Guidelines contained within the Jamaica Constabulary Force Ethics and Integrity Policy states that it is the responsibilities of all employees to take reasonable steps to:

1. identify and avoid actual, potential or perceived conflicts of interests
2. report those conflicts of interest which cannot be avoided, and
3. cooperate in the management of such perceived conflicts of interest.
4. Where a conflict of interest arises due to an employee's social media site or postings, the employee must notify their Commander or Supervisor in writing. The commander/supervisor and the employee must manage the conflict of interest to protect the integrity of the employee the JCF and its auxiliaries.

7.2.2 Improper Associations

The Jamaica Constabulary Force Ethics and Integrity Policy treating with Police Service Conflicts of Interest (improper associations) the states that employees of the JCF and its auxiliaries must take all reasonable steps to identify and avoid associations with people, groups or organizations that are involved in (or perceived to be involved in) any activity that is incompatible with their roles to uphold the law. A member's association with some on-line groups or individuals could be seen as endorsement of their views. This includes liking groups on Facebook, following groups or people on Twitter, or accepting people as friends. Association with individuals, activities or social media groups that may damage the reputation of the Police service must be avoided.

7.2.3 The Media

If a member is contacted by the media about posts on their social media sites that relate to the JCF, they must talk to their manager and the JCF Corporate Communications Unit (CCU) before responding.

If an member is offered payment to produce a blog or micro blog etc. for a third party, this could constitute a conflict of interest and/or secondary employment and must be discussed with his/her manager.

7.3 Monitoring

7.3.1 Reporting Misconduct

If a member becomes aware of a social media site or posting that is illegal or support criminal conducts/activities he/she is duty bound to report the matter to the relevant departments for investigation.

If members are aware of on-line criticism or complaints about police activities, refer them to the relevant authorities for assessment.

7.3.2 Audits of Social Media Sites

The JCF will from time to time conduct audits of social media sites to identify breaches of legislation and policies. In response to specific concerns, complaints or information about an employee, the JCF may conduct on-line searches to obtain additional information about the employee in order to assess or investigate the complaint or concern.

7.4 Protecting your Privacy and Safety

7.4.1 Nothing is private on the Web

Employees are advised against posting anything to social media sites that would cause discomfort to themselves and the organization if:

1. quoted in the media;
2. raised in court while giving evidence; or
3. tested against the SELF test (Scrutiny, Ethical, Lawful, Fair)

Everything posted or received on a social media site is public property. Once something is published on-line, control of it is lost forever. Search engines can find posts years after the publication date. Comments, even when sent to friends only can be forwarded, quoted or misquoted. Archival systems save or cache information even if deleted can reproduce information. Once it is posted on-line, it cannot be withdrawn.

The terms of service for social media sites apply to whatever is posted on the site. The terms may allow for posted material to be used in ways that the author did not intend, such as being exchanged with third parties.

7.4.2 Safety- Personal information

The amount of personal information a member places on social media sites is a matter of personal choice. However, employees need to be aware of the

potential risks involved for themselves and others when making these decisions.

Personal social media sites are of potential safety and privacy risks to police employees and others if not carefully managed. Disclosing too much private information on social media makes a person easy to locate both on-line and off-line. This vulnerability creates a risk of identity theft, fraud, theft, physical attack, stalking, harassment and intimidation.

For example, if an employee's file contains information such as their date of birth and spouse or parents' names, this can give criminals enough information to answer the security questions a bank will ask before giving them access to the member's financial information or bank accounts.

More importantly, the nature of police work exposes members to the risk of offenders seeking revenge. Social media sites with easily accessible personal information provide a simple and effective means to locate an officer and their family or friends.

It is strongly recommended that to protect themselves, family and friends, police staff (sworn and unsworn) should never identify themselves either directly or indirectly as members on social sites.

It is also recommended that employees strictly limit the amount of personal information they post on social sites. Members should think seriously about the risks involved to themselves, family and friends if they choose to include personal information about themselves or others in posts or social media sites, such as names, dates of birth, home or work addresses, private or work email addresses or telephone numbers, relationship status or any other personal information like photographs that may be useful for identity thieves or criminals seeking revenge. It is a good idea to create a separate email address that is used only with personal social media sites.

Where members of the JCF and its auxiliaries choose to identify themselves as police employees, it is recommended that they do not post identifying information about their family such as where they live, where they or their partner works or what school their children attend. For example, do not post photographs of home showing the street number, or photographs of private vehicle (s) show the licence plates.

7.4.3 Privacy Settings

It is recommended that the highest available level of privacy settings be selected to control access to personal information as appropriate. In

order to ensure maximum security, it is recommended that sharing rights be set to friends only. Do not become complacent, as privacy settings are no protection against determined hackers.

Check privacy settings when a social media site is redesigned. During redesign privacy setting may have defaulted to a lower level of security, providing public access to profiles.

7.5 Stalk Book: Knowing where you are

It is recommended that members do not post information about the activities they will be participating in, their location or intended location as this makes them easy target. To guard against burglaries or malicious damage, do not post information that discloses when you are away from home.

Some social media sites with programs such as Foursquare, Gowalla or Facebook Places offer the ability to reveal to the public a person's exact location in real time, via mobile phones. While this will enable people to locate friends, it can enable criminals to accumulate a very detailed map of a person's habits, as well as identify their exact location at any given time. Criminals will also know when a person is not at home.

If adopting this type of social media service, it is recommended that members limit to friends only those who can access their location, and make sure they only have on-line friends they can trust.

7.6 Protect your reputation

It is recommended that members conduct personal on-line searches. Contact should be initiated with websites that have posted personal or inaccurate information without your permission. If the information displayed contravenes the websites policies they may remove it. On request, social media sites like Facebook and LinkedIn may remove the profiles of persons who impersonate others.

7.7 On-Line Friends

5.7.1 Friends

An member's safety and on-line security is only as good as their friends common sense and security settings. Researchers have found that one tactic used by people seeking to obtain confidential information about someone is to simply send a friend request to the target. If accepted, they have access to considerable personal information about their target, including pictures, contact information, lifestyles, family and associates.

Once accepted a friend has the ability to forward to others the private information they have been given access to, or to quote you when they make comments publicly on-line. Given the risk, consider carefully before accepting friend request especially from person in media related field of work. It has been the experience of several law enforcement officers, where members of the media have used their on-line affiliation as a source of information for news stories.

To avoid revealing personal information to strangers, or having inappropriate or illegal postings on a personal site, it is recommended that members check all potential friends carefully before approving them especially strangers. Find out if any current friends know the person, and run an on-line search and check their profiles. Only accept people as friends after confirming their identity and that the friendship would not be an improper association. If an employee has any doubts about whether to approve someone as a friend- do not approve them.

Friend profiles should be reviewed occasionally to see if their recent activity is unacceptable or creates a new conflict of interest or improper association.

7.7.2 Friends of Friends

Accepting a friend will also link an employee to that new friends associates (Friends of Friends). This link, although direct, can create risks. It is recommended that employees set their privacy settings so that their site cannot be seen by Friends of Friends. (Be aware that the standard setting usually allows access to Friends of Friends).

Becoming linked to a friend's associates can also create a conflict of interest with a police employee's public role, or an improper association.

7.8 Protecting your Career & Colleagues

7.8.1 Social Media Use and your Career

Inappropriate Photographs or Comments

Inappropriate photographs or comments on social media sites are a risk to both the member and the Force.

Members are advised to ensure that what they post today will not come back to affect their career, sometimes years later. Choose profile photographs and avatars with care. Members should think very carefully about the comments they posts on-line; especially if intoxicated. It is recommended that they only do or say on-line what they would do or say

off-line in public. For example, staff should only load comments or photographs onto social media sites that they would be comfortable with seeing on the front of the newspaper.

Reporters and lawyers regularly check the social websites of people who come to their attention. Major newspapers employ staff to actively investigate social media sites to identify content or angles for news stories.

Newspapers generally keep copies of all photographs they publish. The police officers identified by their embarrassing photographs may find the pictures republished by the newspaper years later if they again make the news. This risk may limit their ability to be considered acceptable for any high profile or senior police positions.

A New York defence lawyer got his clients charge downgraded from carrying a loaded weapon to resist arrest by arguing that the arresting officer planted the gun on the defendant as an excuse for breaking his ribs during the arrest. The lawyer succeeded in damaging the officer's credibility by tabling evidence from the officer's media sites. On these sites the officer had stated he was devious, watching a film about a corrupt police officer to brush up on procedure, and had posted advice on how to assault people during an arrest.

Members also conduct internet searches on job candidates before making an offer of employment. A person whose social media profile shows them to be socially irresponsible is less likely to be employed.

7.8.2 Social Use and Covert Careers

a) Undercover and Surveillance Operatives

The JCF goes to considerable lengths to protect the identity of undercover and surveillance operatives in covert operations including the provision of assume identities and the suppression of public records. Members must take care to ensure that undercover and surveillance operatives cannot be identified on-line.

Undercover and surveillance operatives are strongly advised not to have a personal social media site which identifies them by name, photograph, or employment with the organization.

Undercover operatives who use or are identifiable on social media sites may compromise their safety and ongoing operational effectiveness in the Undercover Program. Should this occur an assessment will be made by the Director NIB, as to their continued deployment in this role. The assessment is to ensure the

safety and welfare of undercover officers, as well as the integrity of Police operations and methodologies.

members must also consider the consequences when they identify colleagues as police officers on social media sites. There is a real potential to inadvertently endanger the lives to covert colleagues by publishing on social media sites picture or information identifying them or their employment by the organization.

Members not currently in undercover or surveillance roles should consider the potential effect of having a media site of their future ability to perform covert duties. An undercover or surveillance career may be impossible after years of publishing their identity and picture on social media site.

b) Counter Intelligence and Extortion

Law enforcement agencies use social media sites to gather intelligence- so do criminals. Police employees run the risk of criminals using social media sites to befriend them on- line to obtain sensitive information. If a criminal can lure the employee into compromising situations either on-line or off-line, then the employee may be vulnerable to extortion to provide sensitive information.

7.9 Protecting your Colleagues

7.9.1 Postings of other people

Members should think carefully before posting pictures or personal information about other members. For example, posting pictures of colleagues onto social media sites in what is seen as funny situations may seriously damage their reputations and career, or place their life at risk, sometime years after the posting was made and then deleted. Similarly, an employee's reputation and career may be damaged due to postings about them made by their friend or colleagues. Under no circumstance should offensive comments be made about the Force or colleagues on social media sites.

Members should be considerate to their colleagues and not post details of private conversations, photographs of colleagues or tag photographs with a colleague's name without permission. Employees should also not post information about a colleague, or remove information posted about them, if that colleague did give consent.

7.9.2 Legal Liability

It is recommended that members seek permission from the person before making postings about others, especially if the posting is compromising or contains information that identifies them by name, photograph, and employment with the organization or where they live. A publication which damages the reputation of a person may be defamation. Placing inappropriate pictures of or comments about others onto social media sites, or allowing others to post such pictures or comments on a personal site, could result in expensive litigation for defamation.

8.0 LEGISLATIVE FRAMEWORK

This document should be read in conjunction with the following:

- a) Jamaican Constitution,
- b) The Jamaica Constabulary Force Ethics and Integrity Policy; and the
- c) JCF Media Policy

8.1 Constitutional Provisions: the Jamaican Constitution

Enshrined in the Constitution of Jamaica is the protection of certain fundamental rights of the citizens to include but not limited to the right to freedom of expression, freedom to hold opinion and to receive and impart ideas and information

Sec 22(1) except with his own consent, no person shall be hindered in the enjoyment of his freedom of expression, and for the purposes of this section the said freedom includes the freedom to hold opinions and to receive and impart ideas and information without interference, and freedom from interference with his correspondence and other means of communication.

Albeit this right to freedom of expression is a constitutional right to which all Jamaicans are entitled, it must be noted that this right is not an absolute right and requires of every citizen responsible conduct and commentary which is reasonably required:

- i. in the interests of defence, public safety, public order, public morality or public health;
- ii. for the purpose of protecting the reputations, rights and freedoms of other persons, or the private lives of persons concerned in legal proceedings, preventing the disclosure of information received in confidence, maintaining the authority and independence of the courts, or regulating telephony, telegraphy, posts, wireless broadcasting, television or other means of communication, public exhibitions or public entertainments; or

Subsection 2(a) (b), imposes restrictions upon public officers, police officers or upon members of a defence force.” On interpretation appears to give the legislature and other organs of the

State the authority to restrict freedom of expression in relation to “public officers, police officers or upon members of a defence force.”

8.2 Charter of Fundamental Rights and Freedoms Act (Constitutional Amendment Act 2011)

With the passing of the Charter of Fundamental Rights and Freedoms Act in April 2011 however, which repeals and replaces Chapter 3 of the Constitution under which Section 22 falls there appears to be a change in the interpretation as it relates to the rights to freedom of expression. There are restriction on public officers to include, police officers and members of the defence force as it relates to their freedom of expression

8.3 Libel and Slander Act

Members of the organization are being reminded that when making comments via social media, to do so in keeping with **Sections 5 and 6** of the **Libel and Slander Act**:

Sec. (5). “ If any person shall maliciously publish any defamatory libel, knowing the same to be false, every such person, being convicted thereof, shall be liable to be imprisoned for a term not exceeding two years, and to pay such fine as the court shall impose

Sec. (6). If any person shall maliciously publish any defamatory libel, every such person, being convicted thereof, shall be liable to fine or imprisonment or both, as the court may impose, such imprisonment not to exceed the term of one year.”

8.4 References

- i. JCF Media Policy
- ii. Ethics and Integrity Policy: Code of Ethics supported through the policy outlines the values, conduct and performance expected of all members of the JCF and its auxiliaries.